

HOUSE BILL 343

By Capley

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 47, relative to lighters.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 47, Chapter 18, Part 1, is amended by
adding the following as a new section:

47-18-136.

(a) As used in this section:

(1) "Counterfeit lighter" means a lighter that infringes on an intellectual
property right of a citizen of the United States or a person who is protected by
federal or state intellectual property law;

(2) "Lighter" means any electrical or mechanical device that operates
using any type of fuel and is intended for use in igniting cigarettes, cigars, pipes,
charcoal or gas grills, or fireplaces; and

(3) "Unsafe lighter" means any of the following:

(A) A disposable or refillable cigarette, cigar, or pipe lighter that
does not comply with American Society for Testing and Materials (ASTM)
standard F400-20; or

(B) A utility, grill, or fireplace lighter, or a lighting rod or gas
match, that does not comply with ASTM standard F2201-20.

(b) A person shall not offer for sale, sell, or offer a free sample of a counterfeit
lighter or unsafe lighter.

(c) Subsection (b) does not apply to:

(1) The interstate transportation of counterfeit lighters or unsafe lighters that pass through this state; or

(2) The storage of counterfeit lighters or unsafe lighters in a warehouse or distribution center in this state if the warehouse or distribution center is not open to the public for the purposes of retail sale or distribution.

(d) A violation of this section constitutes an unfair or deceptive act prohibited under § 47-18-104, and is punishable as provided in this part.

SECTION 2. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Violating § 47-18-136;

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.